

SENATE BILL 1082

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 39,
Chapter 17, Part 13, relative to criminal offenses.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 39-17-1324, is amended by deleting subdivision (i)(1) and substituting:

(1) "Dangerous felony" means:

- (A) First degree murder, as defined in § 39-13-202;
- (B) Second degree murder, as defined in § 39-13-210;
- (C) Voluntary manslaughter, as defined in § 39-13-211;
- (D) Criminally negligent homicide, as defined in § 39-13-212;
- (E) Reckless homicide, as defined in § 39-13-215;
- (F) Aggravated kidnapping, as defined in § 39-13-304;
- (G) Especially aggravated kidnapping, as defined in § 39-13-305;
- (H) Involuntary labor servitude, as defined in § 39-13-307;
- (I) Trafficking for forced labor or services, as defined in § 39-13-308;
- (J) Trafficking for commercial sex acts, as defined in § 39-13-309;
- (K) Aggravated human trafficking, as defined in § 39-13-316;
- (L) Robbery, as defined in § 39-13-401;
- (M) Aggravated robbery, as defined in § 39-13-402;
- (N) Especially aggravated robbery, as defined in § 39-13-403;
- (O) Carjacking, as defined in § 39-13-404;
- (P) Aggravated rape, as defined in § 39-13-502;

- (Q) Rape, as defined in § 39-13-503;
- (R) Aggravated sexual battery, as defined in § 39-13-504;
- (S) Rape of a child, as defined in § 39-13-522;
- (T) Sexual battery by an authority figure, as defined in § 39-13-527;
- (U) Aggravated rape of a child, as defined in § 39-13-531;
- (V) Especially aggravated rape, as defined in § 39-13-534;
- (W) Especially aggravated rape of a child, as defined in § 39-13-535;
- (X) Aggravated burglary, as defined in § 39-13-1003;
- (Y) Especially aggravated burglary, as defined in § 39-13-1004;
- (Z) Aggravated stalking, as defined in § 39-17-315(c);
- (AA) Especially aggravated stalking, as defined in § 39-17-315(d);
- (BB) Initiating the process intended to manufacture methamphetamine, as defined in § 39-17-435;
- (CC) A felony involving the sale, manufacture, distribution, or possession with intent to sell, manufacture, or distribute a controlled substance or controlled substance analogue, as defined in part 4 of this chapter; or
- (DD) Any attempt, as defined in § 39-12-101, to commit a dangerous felony;

SECTION 2. Tennessee Code Annotated, Section 39-17-1324, is amended by designating subsection (d) as subdivision (d)(1) and adding the following subdivision (d)(2):

- (2) A lesser included offense of the predicate dangerous felony named in the indictment or presentment is included in the indictment or presentment by implication if the lesser included offense is a dangerous felony, as defined in subdivision (i)(1).

SECTION 3. This act takes effect July 1, 2025, the public welfare requiring it.